



POLICE DEPARTMENT

June 24, 2025

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In the Matter of the Charges and Specifications :

- against - :

Detective Specialist Blendor Gashi :

Tax Registry No. 966066 :

73 Precinct :

Case No.

C-030990

-----X  
At: Police Headquarters  
One Police Plaza  
New York, NY 10038

Before: Honorable Vanessa Facio-Lince  
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Matthew McCarthy, Esq.  
Department Advocate's Office  
One Police Plaza, Room 402  
New York, NY 10038

For the Respondent: Marissa Gillespie, Esq.  
Karasyk & Moschella, LLP  
233 Broadway, Suite 2340  
New York, NY 10279

To:

HONORABLE JESSICA S. TISCH  
POLICE COMMISSIONER  
ONE POLICE PLAZA  
NEW YORK, NY 10038

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## CHARGES AND SPECIFICATIONS

1. Said Detective Specialist Blendor Gashi, while on duty and assigned to the Intel-Criminal Intel Section, on or about May 18, 2024, failed to comply with the lawful orders of Captain John Dasaro, Executive Officer of the 72 Precinct and Lieutenant Aheisha Grant, assigned to Patrol Borough Brooklyn South, to affect an arrest of an individual known to the Department.

A.G. 304-03, Page 1, Paragraph 2

COMPLIANCE WITH  
ORDERS

2. Said Detective Specialist Blendor Gashi, while on duty and assigned to the Intel-Criminal Intel Section, on or about May 18, 2024, failed to affect an arrest of an individual known to the Department.

P.G. 202-01, Page 1, Paragraph 9

DUTIES AND  
RESPONSIBILITIES–  
POLICE OFFICER

## REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on May 22, 2025. Respondent, through his counsel, entered a plea of Guilty to the charged misconduct, and testified in mitigation of the penalty. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Guilty in accordance with his plea. However, I do not find mitigation to be warranted. I, therefore, recommend that Respondent forfeit a total of fifty (50) penalty days, including, thirty-one (31) suspension days already served, nineteen (19) vacation days, and be placed on a one-year period of dismissal probation.

## SUMMARY OF EVIDENCE IN MITIGATION

The facts in this case are not in dispute as Respondent has admitted his guilt to both specifications. There is also video evidence documenting portions of the incident.

Respondent [REDACTED] testified that on May 18, 2024, while working in his capacity as a Field Intelligence Office in the Intel Criminal Section, he was assigned to his first protest detail-- a "Free Palestine" demonstration in Bay Ridge, Brooklyn. According to Respondent, based upon information he received during the muster, he was told that he was on a "support team" and that the Brooklyn South Public Safety team would take all arrests. He testified that he did not know, nor seek clarification, as to what kind of "support" his assignment actually entailed. (Tr. 20-21, 34)

Respondent described the protest as "chaotic" and "hectic." Protesters were screaming, disregarding lawful orders from officers, surrounding officers and invading their personal space with scarves, cameras, and their bodies. Respondent observed officers escorting individuals with zip ties restricting their wrists away from the protest. (Tr. 20-21, 27)

After Respondent had been on scene for several hours, Captain John Dasaro of the 72 Precinct approached Respondent and stated, "Gashi, this is yours. Speak to Lieutenant Grant about the particulars." This was captured on Respondent's body-worn camera. (Dept. Ex. 2 at 2:50) Captain Dasaro guided Respondent toward Lieutenant Aheisha Grant of Patrol Borough Brooklyn South, who was in the process of handcuffing a woman. Lieutenant Grant stopped another officer from transporting the woman and announced that she was Respondent's arrestee. Lieutenant Grant also informed Respondent of the basis for the woman's arrest. Officer Yassir Zahroof then aided Respondent in escorting the arrestee to the prisoner van. Once they reached the van, the female arrestee was placed in the van along with other arrested individuals.

Respondent then told Officer Zahroof, "They tried to throw that on me." (Dept. Ex. 1, Zahroof body-worn camera, at 06:14) For the remainder of the protest detail, Respondent continued to observe officers arresting protesters and escorting them to prisoner vans. He had no further interactions with the arrestee that he placed in the prisoner van. (Tr. 22-25, 27, 36)

At the mitigation hearing, Respondent attempted to explain his failure to follow the two superiors' orders. Respondent testified on direct examination that he interpreted Lieutenant Grant's explanation of the individual's actions that merited an arrest as information that he had to relay to the arresting officer after transporting her to the prisoner van. However, Respondent's alleged belief is not corroborated by his actions. Respondent never relayed this information to anyone and reluctantly admitted that it was "fair to say" he did not do so because he knew he was the arresting officer. In addition, despite testifying that he did not know the extent of a support team's role in a protest, he acknowledged that effectuating an arrest would "absolutely" be an example of support when an arresting team is overwhelmed. (Tr. 23, 34, 42-43, 47)

Respondent asserted that his statement to Officer Zahroof was indicative of his belief that the Captain and Lieutenant mistook him for a member of the arrest team. In retrospect, however, Respondent recognized that he was the one who was mistaken. He admitted that the appropriate course of action in that situation would have been to seek clarification and expressed regret at his inaction. (Tr. 24-25)

Respondent attributed his "lack of experience" as a police officer at the time of the incident, as a reason for his misinterpretation of the orders given to him. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. After completing six months at the Academy, Respondent was assigned to a FTU pilot program in Staten Island. Thereafter, in April 2023, Respondent became a field intelligence officer for approximately six months. Respondent stated that by May 2024, when the incident that gave rise to the current case occurred, he had limited experience on patrol. He estimated that he had made approximately 20 to 25 arrests by that point in his career, but had never made an arrest at a mass protest [REDACTED]

[REDACTED]. Respondent also indicated that during this time, he was preparing to take the sergeant's exam. (Tr. 16-18)

## PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 2, 2018, has pled guilty to failing to comply with lawful orders and failing to affect an arrest of an individual known to the Department. The Department Advocate has requested a penalty of the forfeiture of thirty-one (31) suspension days (already served), forfeiture of nineteen (19) vacation days and one-year dismissal probation. The presumptive penalty for failure to comply with a lawful order is 20 days, the aggravated penalty is 30 days. The presumptive penalty for failure to take police action is 20 days, the aggravated penalty is termination. In support of its penalty recommendation, the Department argued that Respondent failed to comply with the lawful orders of two supervisors, and therefore the penalty should be 40 penalty days for Specification 1. The Department concluded that a total of 50 penalty days and one-year dismissal probation would adequately address the misconduct in this case. This Tribunal concurs with the Department's recommendation.

Having had the opportunity to assess Respondent's demeanor as he testified before this Tribunal and after carefully reviewing the BWC footage, this Tribunal does not credit Respondent's testimony with regard to his belief that he was not responsible for the arrest.

Although Respondent accepted of responsibility for his failures and expressed remorse, his testimony was insufficient to mitigate the penalty.

In any paramilitary organization, it is vital for officers to obey the lawful orders of superiors to ensure the Department's continued good order and efficiency. Failure to do so, particularly during an event resulting in mass arrests, can compromise the safety of civilians and other members of service. Respondent failed to comply with a lawful order, from both a Captain and a Lieutenant, to place an individual under arrest during a chaotic protest. These actions allowed an arrestee to proceed to the Mass Arrest Processing Center without an officer assigned to process the arrest. Respondent's conduct on the date in question demonstrated a significant lapse of judgment and his comment that "they tried to throw that on me," demonstrates a wanton disregard of his responsibilities. It is especially concerning behavior for a member of service who, in his testimony, expressed interest in advancing his career and taking on a supervisory position. Therefore, a significant penalty, that includes a period of monitoring, must be imposed to address and deter any such future misconduct.

Counsel for Respondent has argued against the imposition of dismissal probation because of the potentially damaging effects upon Respondent's promotional opportunities. That is not a mitigating factor. Based on the facts in the record and in light of the comment Respondent made after he failed to comply with the orders he received, the imposition of a monitoring period is appropriate under the circumstances. This Tribunal believes it will provide an opportunity for Respondent to improve his professional performance to his pre-offense levels and demonstrate that he can be trusted to comply with orders from his supervisors. Good order and discipline dictate that Respondent demonstrate to this Department that his judgement has improved before advancing in his career.

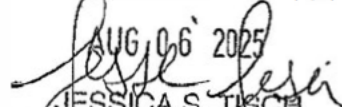
For the foregoing reasons, the Tribunal recommends that Respondent that be DISMISSED from the New York City Police Department, but that his dismissal be held in abeyance for a period of one year, pursuant to Administrative Code § 14-115(d), during which time he is to remain on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings. I further recommend that Respondent forfeit thirty-one (31) suspension days already served and an additional nineteen (19) vacation days for a total of 50 penalty days.

Respectfully submitted,



Vanessa Facio-Lince  
Assistant Deputy Commissioner Trials

**APPROVED**

AUG 06 2025  
  
JESSICA S. TISCH  
POLICE COMMISSIONER





## POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD  
DETECTIVE BLENDOR GASHI  
TAX REGISTRY NO. 966066  
DISCIPLINARY CASE NO. C-030990

Respondent was appointed to the Department on July 2, 2018. On his three most recent annual performance evaluations, he was rated “Exceeds Expectations” for 2022, 2023, and 2024.

In connection with the instant matter, Respondent was suspended without pay from May 24, 2024 through June 23, 2024. He was placed on Level 2 Discipline Monitoring in July 2024; monitoring remains ongoing.

Respondent has no formal disciplinary history.

For your consideration.

Vanessa Facio-Lince  
Assistant Deputy Commissioner Trials